



File No.: EXP202313040

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 09/08/2023, a complaint was filed with entry registration number REGAGE(...) and REGAGE(...) before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are a neighbor of the complained party and that the latter has installed a digital peephole with recording function on their door, which would record common areas of the building where both parties reside, without the authorization of the Community of Property Owners and without being properly marked with the required informative signs of a video surveillance area.

Along with the complaints, the following were submitted, among others:

- Video showing the digital peephole installed by the complained party and its activation.
- Photographs of the device in question.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 02/10/2023, the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 06/11/2023 as recorded in the acknowledgment of receipt in the file.

On 04/12/2023, a response letter from the complained party was received by this Agency, in which they acknowledged having installed a digital peephole on their door for security reasons after suffering several acts of vandalism and that it only records when it detects movement in front of it, not affecting the private activity space of the other neighbors.

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Along with the letter, the following documents were submitted:

- Photographs of the digital peephole installed on their door.
- Copy of the complaint filed on 14/08/2023 with the State Security Forces, describing situations of "threats" against the complained party, as well as acts of vandalism against their private property.
- Copy of the complaint filed on 27/11/2023 with the Court of First Instance and Instruction, which records a situation of "threats" and acts of vandalism that, allegedly, the complainant would have committed against the private property of the complained party.
- Copy of the invoice for the device dated 07/08/2023.
- Photographic report of the acts of vandalism suffered.

THIRD: On 09/11/2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On 13/11/2023, a letter from the complainant was received by this Agency stating that the complained party had deactivated the light indicating that the digital peephole was recording, but that a "click" is heard every time someone passes by. A video was provided in which this sound would be heard.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Alleged infringements

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The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

Furthermore, paragraph 4 of the aforementioned provision states that:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device."

In this case, the complaint dated 09/08/2023 is examined, through which the installation of a digital peephole on the access door to the dwelling of the complained party is reported, without permission from the Community of Owners, which would record common areas of the building where both parties' dwellings are located; as well as the lack of signage in the monitored area.

It should be noted that a digital peephole is an electronic device that, instead of the conventional peephole (that wide-angle lens or fisheye), has a small camera and an LCD-type screen. In the response to the transfer of the facts subject to the complaint, the complained party acknowledges that the recording function of the digital peephole is activated when it detects movement in front of it. However, it justifies its installation on security grounds after having suffered vandalism acts on the access door to their dwelling, which have been reported to the State Security Forces and Corps.

A copy of the complaint, dated 14/08/2023, filed by the complained party with the National Police Corps is attached, in which they state that some neighbors, different from the complaining party, "since December 2022, have carried out vandalism acts against the complainant's property such as spitting on the door of the dwelling, thumbtacks on the doormat, dirtying the landing, scratching their vehicle" "that they are afraid and believe that the threats made may be carried out."

Additionally, the complained party also attaches a copy of the complaint, dated 27/11/2023, filed with the Court of First Instance and Instruction against the complaining party. In this case, they state that "since December 2022, I have been having serious problems with this neighbor regarding vandalism towards my dwelling, vehicle, and even towards my pets."

Image capture devices have proven to be an effective means to prevent such situations, as the images can be transferred to the Security Forces or the nearest investigating judge, who is competent to assess them freely.

Regarding the installed device, it serves as a traditional peephole, although some models have the capability to capture images if someone remains in the area near the entrance door of the dwelling, allowing for the collection of evidence of events occurring in the area in question.

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The facts described represent a situation framed within the context outlined, as there have been spitting or thumbtacks found at the entrance door of the residence of the party being claimed against, due to a situation of poor neighborly coexistence; this agency is not competent to resolve these issues. As with other fundamental rights, the right to the protection of personal data is not absolute, but rather has its limits, being subject to the principle of proportionality in cases of conflict with other fundamental rights (for example, the right to physical integrity).

This agency takes into account the context of all that has occurred, as well as the existence of ongoing judicial proceedings regarding the same, to consider the digital peephole a temporary measure proportionate to the described situation. A restrictive interpretation of the norm could lead to a situation of real risk for the party being claimed against and the residents of the dwelling in question.

III

Presumption of Innocence

The principle of the presumption of innocence prevents the imposition of an administrative infraction when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must

translate into an acquittal. The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which one's own positions can be defended. According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

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Conclusion

Therefore, based on what has been indicated in the previous paragraphs and having analyzed the documentation in the administrative file, no evidence has been found that substantiates the existence of an infraction within the competence of this Agency or that justifies the removal of the digital peephole installed in its current location, considering the measure proportionate to the described situation.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection
RESOLVES:

FIRST: TO PROCEED with the ARCHIVING of these proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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